

HOUSE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Justin Thurber

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to strengthening penalties and enforcement of prison contraband laws.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Justin Thurber</i>	<i>5th Bristol</i>	<i>7/1/2026</i>

HOUSE No.

By Representative Thurber of Somerset, a petition (subject to Joint Rule 12) of Justin Thurber relative to penalties and enforcement of prison contraband laws. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to strengthening penalties and enforcement of prison contraband laws.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 268 of the General Laws, as appearing in the 2024 official edition,
2 is hereby amended by striking out Section 28 in its entirety and inserting in place thereof the
3 following:-

4 “Section 28. (a) Whoever gives or delivers to a prisoner in any correctional institution, or
5 in any jail or house of correction, any drug or article whatever, or has in his possession within the
6 precincts of any prison herein named with intent to give or deliver to any prisoner any such drug
7 or article without the permission of the superintendent or keeper, shall be punished by
8 imprisonment in the state prison for not more than five years, or in a jail or house of correction
9 for not more than two years, or by a fine of not more than one thousand dollars.

10 (b) Whoever violates the provisions of this section while either employed by or
11 volunteering for a county Sheriff’s office, or the Department of Correction, or a private company
12 contracted by either a Sheriff’s Office or the Department of Correction to provide goods or

13 services to inmates, shall be punished by imprisonment in a state prison for not less than one year
14 nor more than five years, or for not less than one year in a house of correction. The sentence
15 imposed on such person shall not be reduced to less than one year, nor suspended, nor shall any
16 person convicted under this section be eligible for probation, parole, work release, or furlough or
17 receive any deduction from their sentence for good conduct prior to serving one year of the
18 sentence.”